
**DEPARTMENT
POLICY****SDA and FAP Only**

Residents of certain group living facilities can qualify for State Disability Assistance (SDA) and/or Food Assistance Program (FAP). This item defines these facilities and the programs residents may be eligible for. Bridges Eligibility Manual ([BEM](#) 616, [State Disability Assistance \(SDA\) Special Living Arrangement \(SLA\)](#), and [BEM](#) 617, [FAP In Nonprofit Group Living Facilities](#), provide special eligibility and budgeting rules. Bridges Administrative Manual ([BAM](#) 430, [SDA Special Living Arrangement Authorization And Payment](#), has instructions for authorizing payments to facilities.

FAP Only

Unless otherwise stated in this item, a facility is **not** permitted to accept food assistance benefits for meals served to its residents. Clients may use their food assistance benefits for purchases at regular outlets.

**Adult Foster Care
Home (AFC)****SDA and FAP Only**

AFCs must be licensed by the License and Regulatory Affairs (LARA) Bureau of Community and Health Systems (BCHS) to offer either, or both, of the following levels of care:

- **Domiciliary care.** This includes meals, lodging, and supervision of basic living activities, such as eating, bathing and dressing.
- **Personal care.** This includes meals, lodging, supervision **and** personal assistance in basic daily living activities.

SDA Only

MDHHS adult community placement (ACP) workers determine the level of care for AFC residents. Facility payment **cannot** be authorized until the level of care determination is made.

MDHHS allows Community Mental Health (CMH) staff to place clients in an AFC homes under some circumstances. MDHHS accepts the CMH level of care determination (without ACP staff

approval). Facility payment **cannot** be authorized until the type of care determination is made.

FAP Only

In order to be eligible for FAP as an AFC home resident, the home must be nonprofit and licensed for 16 or fewer residents. **Nonprofit** means IRS tax exempt.

CMH/MDHHS Supported Community Living Facility

FAP Only

Persons participating in the CMH/MDHHS Supported Community Living Program live independently, usually two or three to an apartment. Local CMH or MDHHS agencies assist these clients or contract with independent agencies to enable residents to live more independently in their own home.

Such persons receiving CMH/MDHHS services are **not** in institutional status. Verify the amount of the client's shelter obligation from the provider. Do **not** calculate the client's portion of the shelter obligation by using the lease agreement and prorating the amount among all of the residents.

Note: CMH/MDHHS contributes toward shelter costs for some of these clients. Allow **only** the client's portion of a shelter expense in these situations.

County Infirmmary (CTI)

SDA Only

CTIs are **not** licensed as AFCs but **are** regulated by BCHS. Thus, AFC licensing requirements are met.

The ACP worker determines whether a CTI resident needs domiciliary or personal care; see Adult Foster Care Home in this item. Facility payment **cannot** be authorized until the level of care determination is made.

Substance Abuse Treatment Center (SATC)

SDA and FAP Only

SATCs are licensed by the Substance Abuse Licensing Section (SALS) within LARA to provide treatment for drug and/or alcohol addiction.

SDA Only

SATCs (including residential alcoholism treatment centers) must be licensed by SALS. Eligible residents receive the **incidentals allowance only**. SALS makes all provider payments.

SATCs owned by the State of Michigan, are not required to meet licensing requirements within LARA.

When a client is requesting SDA and resides in a SATC and licensing requirements are questionable, the local office must contact Cash Policy at Policy-FIP-SDA@michigan.gov to request a policy exception.

FAP Only

In order to be eligible for FAP as a resident of an SATC the facility must be:

- Nonprofit, IRS tax exempt **and** licensed.
- If not licensed, certified by the Michigan Department of Health and Human Services Behavioral Health and Developmental Disabilities Administration, Office of Recovery Oriented Systems of Care, will certify if the SATC is operating to further the purposes of Part B of Title XIX, by providing treatment and rehabilitation for drug addicts and/or alcoholics.

If an SATC applies for FAP on behalf of its residents and they are not licensed or certified, refer them to the Michigan Department of Health and Human Services, Bureau of Specialty Behavioral Health Services, Substance Use, Gambling & Epidemiology at either:

- Email: mdch-bhdda@michigan.gov. The subject line should include Title XIX.
- Mail: Capitol Commons Center, Sixth Floor, 400 South Pine St., Lansing, MI 48913.

**Home for the Aged
(HFA)****SDA Only**

HFAs must be licensed by LARA. Clients living in an HFA receive meals, lodging and special services for the aged. No level of care determination is necessary as there is only one rate for HFA payments.

**Long-Term Care
(LTC) Facility****SDA Only**

LTC facilities must be licensed by LARA. Typically, such a facility provides meals, lodging and some level of medical care, for which Medicaid funding is received. Eligible residents receive the **incidentals allowance only**. See [Bridges Program Glossary, Long-Term Care](#), for types of facilities that qualify.

**Shelter for Victims
of Domestic
Violence****FAP Only**

A shelter for victims of domestic violence and their children can be a public or private nonprofit residential facility. It might have other purposes (YWCA) and sets aside a portion of the facility on a long-term basis for use by victims and their children.

**Federally
Subsidized
Housing for the
Elderly****FAP Only**

This is housing for the elderly, built under either Section 202 of the Housing Act of 1959 or Section 236 of the National Housing Act. There are **no** special budgeting or eligibility rules for residents of these facilities.

Temporary Housing for the Homeless

FAP Only

Temporary housing for the homeless is designed to provide meals, lodging and special services. The facility may be either public or private and either nonprofit or for profit. Clients may use food assistance benefits to purchase meals **only** from nonprofit facilities. Clients in for-profit facilities may use food assistance benefits at regular retail outlets.

VERIFICATION REQUIREMENTS

SDA and FAP Only

The local office must determine if the group living facility is acceptable before certifying eligibility for residents.

SATC, HFA and LTC

Obtain a copy of the facility's license. If the facility **cannot** provide a copy of its license, the license status for an SATC or LTC is available from LARA and for HFA it is available from OCAL.

Note: For FAP, an SATC which is not licensed may provide a letter or other certification from LARA indicating it is operating to further the purposes of Part B of Title XIX.

AFC, CTI

Obtain a copy of the facility's license. If the facility **cannot** provide a copy of its license, the license status is available from LARA; see FO-132, AFC Homes Listing by County.

Note: For FAP, AFC homes must be licensed for 16 or fewer residents.

SATC, AFC

FAP Only

The facility has nonprofit (IRS tax exempt) status. IRS provides documentation of tax status to each approved facility.

Note: For worker reference, the local office must maintain a list of group living facilities where residents may receive FAP if otherwise eligible.

LEGAL BASE

SDA

Annual Appropriations Act
Mich Admin Code, R 400.3151 – 400.3180

FAP

7 CFR 271.2
7 CFR 273.11(e),(f),(g),(h)